



POLICE DEPARTMENT

March 3, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202308544 (Incident Date: September 10, 2023) regarding Detective Jonathan Bourne, Tax No. 958321 (PODS Case No. C-032920)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202308544, pertaining to Detective Jonathan Bourne. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Detective Bourne would be detrimental to the Police Department's disciplinary process.

In this matter, the CCRB seeks to serve Charges and Specifications against Detective Bourne for wrongful use of force and improper threat of arrest. After a review of the evidence, it has been determined that Detective Bourne's use of force was reasonable when considering the totality of the circumstances. The Internal Affairs Bureau conducted a thorough parallel investigation into the underlying use of force in this case and determined it was lawful and proper. The Police Commissioner agrees with the findings of IAB in regard to the use of force allegation and intends to impose no disciplinary action for this allegation.

In regard to the improper threat of arrest allegation, the Police Commissioner agrees with CCRB's substantiated findings. However, the Police Commissioner has determined Charges and Specifications are not the appropriate form of discipline, based on the Department's Disciplinary Penalty Guidelines, and Detective Bourne's employment history with the Department. Detective Bourne has been a member of the New York City Police Department for over nine (9) years and has no prior substantiated CCRB allegations, or prior formal Department disciplinary history.

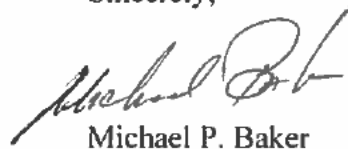
Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action for the allegation of physical force. However, the Police Commissioner intends to direct the issuance of a Schedule "B" Command Discipline with the forfeiture of two (2) vacation days as well as formalized training

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for the allegation regarding the threat to arrest. Furthermore, it should be noted that on September 26, 2024, Detective Bourne was issued a Schedule "B" Command Discipline, pursuant to IAB's investigation, in regard to failing to provide his name and shield number in this case.

Sincerely,

A handwritten signature in black ink, appearing to read "Michael P. Baker". The signature is fluid and cursive, with the first name "Michael" being more legible than the last name "Baker".

Michael P. Baker
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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MOHAMMAD KHALID
INTERIM CHAIR

March 6, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB v. Detective Jonathan Bourne, Tax No. 958321
CCRB Disciplinary Case No.: 202308544 (PODS No. C-032920)

Commissioner Tisch:

I am writing in response to the letter from Deputy Chief Michael P. Baker, dated March 3, 2025, informing the Civilian Complaint Review Board (“CCRB”) of your intent to not pursue Charges and Specifications against Detective Bourne. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department, I am responding to Deputy Chief Baker’s notification.

Deputy Chief Baker stated that the Police Commissioner agrees with the finding made by the Internal Affairs Bureau’s (“IAB”) investigation that Detective Bourne’s use of force was reasonable when considering the totality of the circumstances and as such intends to impose no disciplinary action for this allegation. Deputy Chief Baker stated that the Police Commissioner does agree with the CCRB’s substantiation of the improper threat of arrest allegation but believes that the matter should be resolved with a Command Discipline.

NYPD Patrol Guide Procedure 221-02 stated that "When a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with Patrol Guide 221-01, “Force Guidelines” and: ... Utilize de-escalation techniques when appropriate and consistent with personal safety." While the totality of the circumstances indicate that the Detective was attempting to help manage and control a densely packed crowd that was exiting a venue at once, any reasonable officer could expect the same circumstances to result in a person inadvertently bumping into them. However, for Detective Bourne to turn around and strike a small woman with a closed fist, as captured by cell phone video provided by civilians (likely not received/reviewed by IAB in their investigation), is not a reasonable use of force. In addition, when the complainant attempted to request a name and badge number from the Detective due to his use of force and her resulting physical injury, he retaliated by threatening to arrest her (in addition to ignoring her requests). As a result, these allegations were substantiated by both the CCRB investigation and panel and are appropriate to pursue by service of Charges and Specifications.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, it is respectfully requested that you permit CCRB to pursue Charges and Specifications as to both allegations against Detective Bourne in this matter.

Respectfully submitted,

Andre Applewhite
Chief Prosecutor
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

March 7, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202308544 (Incident Date: September 10, 2023) regarding Detective Jonathan Bourne, Tax No. 958321 (PODS Case No. C-032920)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated March 6, 2025, regarding the CCRB case involving Detective Jonathan Bourne and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Detective Bourne for the reasons expressed in my March 3, 2025, letter.

When investigating the matter, IAB reviewed numerous videos, including the social media video of the force. The video evidence was also reviewed by the Police Commissioner's Office when reviewing CCRB's investigation.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs the issuance of a Schedule "B" Command Discipline with the forfeiture of two (2) vacation days and formalized training for the allegation regarding the threat to arrest. Furthermore, the Police Commissioner directs that no disciplinary action be imposed for the allegation of physical force. Lastly, no further disciplinary action will be taken for the allegations regarding the name and shield as the misconduct was addressed by a Schedule "B" Command Discipline.

Sincerely,

Michael P. Baker
Deputy Chief
Commanding Officer
Police Commissioner's Office

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